Who Has Which Paper, and What Have We Been Saying About the House?

A guide to the family conversation before the attorney meeting.

Your sister has the will. Your brother has been saying the house should go in someone's name. You remember Mom signing something at a law office years ago, and each of you remembers it a little differently.

This guide is for one conversation with one job: put what everyone has, knows and wants to ask on one page before the attorney meeting. It isn't for deciding anything about the house, the money or who signs.

Who should be there

Mom, wherever she can take part. These are her papers and her house, and what she wants belongs at the top of the page. If she's in the hospital or rehab and not up to a long talk, a few minutes with her beforehand still counts.

Then everyone who holds one of her papers, helps with her bills or has been part of the talk about the house: the one with the will in a fireproof box, the one who has been paying her bills, the one who lives far away and joins by phone. If Mom is married, her spouse.

Pick one person to take notes. It shouldn't be the person leading the conversation.

How to open

Start with what the conversation is for, and with Mom if she's part of it.

- “Mom, before we talk to a lawyer we want to get your papers onto one list. What would you like us to know about what you've set up?”
- “Each of us has a piece of this: a paper, a memory, an idea about the house. Let's get all of it on one page and bring the page to the attorney.”
- Say what the conversation is for: one list of papers, facts and questions. Say what it isn't for: deciding what happens to the house, or who is right about what Mom signed.

Questions to ask

Ask Mom, if she can take part

1. What papers have you signed over the years, and where do you keep them?

2. Who did you want handling things for you, and what matters most to you about the house?

Ask each other

1. Which of Mom's papers do you have, or know the whereabouts of?

2. Whose names do you believe are on the deed to the house, and has anyone seen the deed itself?

3. Is anything of Mom's owned jointly with someone, or already in someone else's name?

4. Has anything been given away, transferred or retitled already? What, to whom, and roughly when?

5. What has each of us been thinking or saying about the house or her other assets, and where did the idea come from?

6. What do we want to ask the attorney, and where do we see it differently from one another?

How to write down what was said

Keep what a paper says separate from what someone remembers. Where two people remember it differently, write both and don't settle it. An attorney can work from the paper, and from knowing where memories differ.

WHAT WAS SAID	WHO SAID IT	FROM A PAPER, OR FROM MEMORY	SEEN DIFFERENTLY BY
"I signed something naming Karen, back when we did the wills."	Mom	Memory. The paper hasn't been found.	
The deed has Mom's and Dad's names on it.	David	From the deed, which he has	Karen thought it was changed some years ago

What not to decide yet

These are questions for an elder law attorney, and the answers depend on the papers and on your state. Your page is what you bring to that meeting. Leave them open.

- Whether to put the house or anything else in someone's name.
- Whether the power of attorney or the trust is enough.
- Who is able to sign for Mom.

- Who is right about what the papers say.

What you can decide today

- Who will write up the notes and send them to everyone.
- Who will look for each paper that hasn't turned up.
- Who will bring the page and the papers to the attorney meeting.
- When you'll talk again.

What this guide doesn't do

It doesn't resolve a disagreement, decide what happens to the house, or tell you what an attorney will say. It gets your family to one page, with the differences left on it. Nothing here is legal, financial or tax advice.

Ready for the next step?

Your family has one page now: what you have, what's been done and what you want to ask, with the differences left on it. The planning interview takes it further: it asks about your family's situation, question by question, and gives you a free planning report you can bring to the attorney meeting and to your Medicaid planner.

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